

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER R5-2017-0041
AMENDING WASTE DISCHARGE REQUIREMENTS
ORDER R5-2016-0045 (NPDES PERMIT NO. CA0085146)

BEAR VALLEY WATER DISTRICT
BEAR VALLEY WASTEWATER TREATMENT FACILITY
ALPINE COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Central Valley Water Board) finds that:

1. On 24 June 2016, the Central Valley Water Board adopted Waste Discharge Requirements Order (WDR) R5-2016-0045, renewing NPDES Permit No. CA0085146, which prescribes waste discharge requirements for the Bear Valley Water District Wastewater Treatment Facility, Alpine County. For the purposes of this Order, Bear Valley Water District is hereafter referred to as "Discharger" and the Wastewater Treatment Facility is hereafter referred to as "Facility."
2. Order R5-2016-0045 (NPDES Permit) authorizes the seasonal (1 January through 30 June) surface water discharge of up to 2.5 million gallons per day (MGD) and an average monthly effluent flow of 1.0 MGD of disinfected secondary treated wastewater to Bloods Creek, a water of the United States and a tributary to the North Fork Stanislaus River. The Discharger is also authorized by WDR Order 5-01-208 to dispose of disinfected secondary treated wastewater via spray irrigation on an approximately 80 acres of leased land adjacent to the Facility.
3. The Discharger owns and operates the Facility. The treatment system consists of a comminutor; biological treatment in a 14.18 million-gallon aeration pond; disinfection in a 12,000-gallon chlorine contact tank; and effluent storage and polishing in a 76.4 million-gallon unlined storage/polishing reservoir. The Facility has a design treatment capacity of 0.50 MGD.
4. The NPDES Permit has a requirement to monitor for total coliform organisms at monitoring location EFF-001 to evaluate compliance with total coliform organisms effluent limitations. Monitoring location EFF-001 is located downstream of the storage/polishing reservoir prior to discharge to Bloods Creek. Total coliform organisms are used as an indicator organism to ensure the wastewater is adequately disinfected to remove human pathogens contained in domestic sewage.
5. By letter dated 22 February 2017, the Discharger requested the monitoring location to collect samples for total coliform organisms be moved to a location immediately following disinfection of the wastewater, prior to transfer to the storage/polishing reservoir. This monitoring location is consistent with the monitoring requirements under WDR Order 5-01-208. The Discharger requested the monitoring location change due to concerns that total coliform organisms are ubiquitous in the environment and are likely added to the reservoir by wildlife. Wastewater pathogens are not added to the storage/polishing reservoir after the chlorine contact tank, therefore, it is appropriate to evaluate compliance with the total coliform organisms effluent limits immediately following the chlorine contact tank prior to storing the treated wastewater in the storage/polishing reservoir. Compliance measured at this point will ensure the Facility is properly operated to maintain adequate disinfection. This Order modifies the effluent monitoring location for total coliform organisms.

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ALPINE COUNTY

6. Issuance of this Order is exempt from the provisions of the California Environmental Quality Act (Pub. Resources Code, § 21000 et seq.) ("CEQA") pursuant to Water Code section 13389, since the adoption or modification of a NPDES permit for an existing source is statutorily exempt and this Order only serves to modify a NPDES permit (*Pacific Water Conditioning Ass'n, Inc. v. City Council of City of Riverside* (1977) 73 Cal.App.3d 546, 555-556.).
7. The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to amend WDR Order R5-2016-0045 for this discharge and has provided them with an opportunity to submit their written views and recommendations.

IT IS HEREBY ORDERED THAT:

Waste Discharge Requirements Order R5-2016-0045 (NPDES No. CA0085146) is amended solely to modify the monitoring location at which effluent samples for total coliform organisms are collected.

Effective immediately upon adoption, Order R5-2016-0045 is amended as shown in Items 1 through 4, below.

1. **Title Page.** Update information found in the title page of the NPDES Permit to reflect changes made in this amending Order as shown in underline/strikeout format below:

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

11020 Sun Center Drive, #200 Rancho Cordova, California 95670-6114
Phone (916) 464-3291 • Fax (916) 464-4645
<http://www.waterboards.ca.gov/centralvalley>

ORDER R5-2016-0045-01
AS AMENDED BY ORDER R5-2017-0041
NPDES NO. CA0085146

**BEAR VALLEY WATER DISTRICT
BEAR VALLEY WASTEWATER TREATMENT FACILITY
ALPINE COUNTY**

I, PAMELA C. CREEDON, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **24 June 2016**, and amended by Order R5-2017-0041 on 7 April 2017.

2. **Order Number.** Change the Order number throughout to R5-2016-0045-01.

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 BEAR VALLEY WATER DISTRICT
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 ALPINE COUNTY

3. **Limitations and Discharge Requirements, Section IV. Effluent Limitations and Discharge Specifications.** Under Section IV.A.1.e., add a footnote to clarify the monitoring location at which samples for Total Coliform Organisms should be collected, as shown underlined below:

- e. **Total Coliform Organisms¹.** Effluent total coliform organisms shall not exceed:
- i. 23 most probable number (MPN) per 100 mL, as a 7-day median; and
 - ii. 240 MPN/100 mL, more than once in any 30-day period.

¹ Compliance with the total coliform organisms effluent limitations is measured immediately following the chlorine contact tank, prior to transfer to the storage/polishing reservoir.

4. **Attachment E, Monitoring and Reporting Program, Section IV.A.1 – Table E-3 Effluent Monitoring.** Add a foot note to Table E-3 to clarify the monitoring location at which samples for total coliform organisms are collected, as shown underlined below:

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Total Coliform Organisms	MPN/100 mL	Grab	2/Week	1, <u>10</u>

¹⁰ For total coliform organisms, in lieu of collecting samples at EFF-001, samples shall be collected immediately following the chlorine contact tank, prior to the transfer to the storage/polishing reservoir.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Board to review the action in accordance with CWC section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date that this Order becomes final, except that if the thirtieth day following the date that this Order becomes final falls on a Saturday, Sunday, or state holiday (including mandatory furlough days), the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at: http://www.waterboards.ca.gov/public_notices/petitions/water_quality or will be provided upon request.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **7 April 2017**.

Original Signed By

PAMELA C. CREEDON, Executive Officer